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Virginia Board of Education, Work Session, Wednesday, August 17, 2022

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- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=hUyPAkWm6FI
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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[00:16:04] got new members. We're delighted to have them all here. I will say that we'll do formal introductions at the 10 o'clock meeting. I hope that's okay with everybody, but that's on that agenda. This morning is the work session. As I think all of you know, we are compressing essentially two days into one, and so we're going to try to move forward somewhat expeditiously with things. The only item for the work session is the discussion of, you know, House Bill 938.

[00:16:37] I will turn it over either to Superintendent Bailo or Dr. Sale. I'm not sure which Dr. Sale. I think I've been told which. Good morning and we look forward to the presentation. Good morning. Well, thank you, President Gecker, Vice President Mann, members of the board and Superintendent Bailo.

[00:16:57] i hope i'm correct in receiving it as an honor and privilege that i was cast as your first presentation for many of our new board members as a welcome and i'm so glad to see everyone for those who i haven't had a chance to work with or meet quite yet my name is leslie sale i am the director of the office of policy with the department of education which means i do get to periodically join you all to to present on major policy initiatives and work related to General Assembly mandates. Sometimes that's one and the same. And that's exactly what brings me here this morning to discuss one of the bills that was passed during our most recent session in 2022,

[00:17:33] House Bill 938. So House Bill 938, which was patroned by Delegate Roxanne Robinson, really tasked the collective us in the educational universe of evaluating and reflecting on six goals of public education with the intent of making recommendations to the General Assembly in a report due November 30th. You'll see that the six goals are bulleted up there and set out explicitly in the language of the bill, but broadly speaking they address rigor, opportunity, and high expectations

[00:18:12] in instruction, particularly math, as well as through our pathways to graduation. They have us reflecting on assessments and our measures of student performance as well as looking at accountability and data transparency so again all of this work and reflection will will culminate in a report to the general assembly but in the meantime the board has really a critical role to play as conveners of the stakeholder discussion group which is the kind of crux and core of this work and we see the board's task kind of unfolding it in two different ways helping design the who

[00:18:48] we'll participate as part of the stakeholder discussion and shaping the how so as you guys can see from the the bullet points these are pretty large complex concepts that we'll be tackling um so we're really looking to the board to provide us some focus and direction and how we might address these concepts as part of our discussions and that's really our two decision points here today that we'll have the board reflect on and how we have this presentation organized we'll start by thinking about the who and then we'll transition over to the how we do this work. For the who and the stakeholder engagement, House Bill 938 does give us a starting

[00:19:27] point on who should be at the table and thinking about the broader groups we want represented as part of this discussion, but it doesn't prescribe who exactly in terms of groups, associations, or individuals are set to represent these groups, which is where the board has an opportunity to provide some discretion and insight here. Of course, we can engage many of our frequent partners and in our collaborative work um that that involve our educational stakeholders across the state but wanted to make sure again our the board had the opportunity to weigh in as the convener of this group um and reflect on on who's participating so a key consideration for the board

[00:20:05] as you all think about the who of course compliance and making sure that we have all of the boxes checked and we have all of the right folks at the table but also thinking about comprehensiveness inclusivity as well as productivity. As you all can imagine, a November 30th timeline for producing a report of this scale and magnitude is a pretty big lift. So we want to make sure that this group is well designed to be able to do this work effectively and quickly. So I will actually quickly pause there to allow Superintendent Balo to jump in with any additional context she wants to at this time. And then I'll also ask President Gecker if he wants to break apart the two decision

[00:20:42] points or whether we'll power through on the next piece. Thank you, Mr. President. And Dr. Sayle, thank you so much for the presentation. And it was, it's been wonderful to work on this so far. What I can't add anything to it, but maybe I can lend a little bit of context. And that is that that House Bill 938, we've kind of lovingly referred to it as the kitchen sink bill.

[00:21:08] It gives us a chance to talk about all things education and really shame or shape and frame some of the conversations about education policy in the commonwealth over the coming months and the coming years i think that when you look at the timeline of 938 at least for me it's really daunting it's really quick work that we need to do luckily we have lots of great folks and at the department and in the queue

who have offered to help with this work and and i'm sure that we are going to be able to pull it off on time with the stellar product that will again sort of be a

[00:21:42] foothold or a catapult if you will into additional policy discussions just one thing of note we have an additional bill that's related to sort of a long-term and more technical conversation about assessment and we're really counting on on house bill 938 to help to give us some of that stakeholder and some of that root work that will guide us in our discussions about assessment in the future and about about just again all things education policy so we're really excited to continue to share updates with you with the commonwealth and with the general assembly about the work

[00:22:22] of of 938 because it really really will be inclusive of voice of of many voices on topics that are of interest to us all so again dr sale thank you so much for preparing today's presentation and my name is on there as a presenter but i will tell you all i did was read through your wonderful slides so thank you um and and president gecker i will again defer to you on on whether you want to pause here for for discussion on this particular decision point or you'd like to to power through and hear more about the actual um individual goals and and how we might see if there are any questions from the board first any board members have questions about

[00:22:58] where we are and what we're doing let's power through wonderful um as i mentioned we we organized this presentation into two pieces the who and the how um so this is the second part which really focuses in on the how. As you all saw from the bill language, the topics that we're discussing right now are framed as goals. So, we wanted to think about how we reframe those or distill those six goals of public education into reflection points and action items for our stakeholder groups. So, in the following slides, our staff has offered some preliminary questions and

[00:23:35] considerations that, again, are meant to frame these goals more as prompts. And in preparing these frameworks we considered a few different things we wanted to create concepts or questions and considerations that we thought could be meaningfully and discreetly addressed in the time allotted also things that we could reasonably address in the time allotted so we really tried to focus in on what we consider to be the core issues at the heart of the discussion and lastly we wanted to make sure that we were advancing relevant and contemporary discussions so any recommendations that come from these discussions really contribute to our ongoing debates and

[00:24:14] conversations around education dilemmas and questions and policy making. So I wanted it to be a current discussion. So we have these organized in the six different goals, and I will quickly walk through how we have recommended we might frame the task for stakeholder discussion, and again, we'll turn it back over to the board to further suss these out. Goal one, which is promoting excellence in instruction in student achievement and mathematics. I will say that perhaps this is the most narrow of our task in front of us, and so what we did with this at the high level is really reframed the goal itself into an action item, an action discussion point. So you'll see

[00:24:54] it's just kind of reformatted as a question there. But what we did do with the sub-bullets is try to prompt and give our stakeholders a way that we can think about existing levers and existing avenues to make policy changes so currently we're going through the mathematics standards of learning review process on a biennial basis the board does hear about the standards of quality and how they might offer prescriptions on how to improve and and move those forward we also have things like teacher education

and licensure that might be an avenue or vehicle for us to make sure mathematics instruction is indeed promoting excellence and achievement for our students and in that last

[00:25:32] Last bullet there, we also wanted to prompt our stakeholders in thinking about access as a prerequisite to achievement. Our next goal is expanding the advanced studies diploma as an option for students in public high schools.

[00:25:50] So our first question is kind of an orienting question for our stakeholders, and making sure the core priorities and the design of the advanced studies diploma would remain intact for any changes or redesign of such a diploma. That being rigor, high expectations, and college and career readiness.

[00:26:07] We also wanted to spend some time with our stakeholders to make sure we were discerning what are perceived versus real challenges and barriers to accessing the advanced studies diploma. And in doing so, I think we will be able to better reflect and make recommendations on how we approach those issues.

[00:26:23] Some of it might be educational and information and messaging to overcome some of those perceived barriers. But those true challenges and real barriers that may require policy solutions, we can start to think about what those are, better understand them so we can respond. Our third goal is increasing transparency, or specifically increasing the transparency of performance measures of public schools.

[00:26:49] As many of you all know, our existing data reporting and accountability systems are quite robust. So meaning that we already have valuable insights to come from this data and information. So what we can and do offer is pretty substantive already. But we wanted to think about visibility and accessibility as functions of transparency here.

[00:27:10] So when we think about availability, we also wanted to think about what's understandable and digestible to our end users. Recognizing that our end users are not just the folks who are steeped in education policy and the accreditation model and have a familiarity with the data and what it means, but these are our parents, our families, our school communities, and even students trying to make sense of the data.

[00:27:31] So making sure that again, accessible and digestible. Goal four, this is a lengthy one, Ensuring the performance measures for public schools prioritize the attainment of grade level proficiency and growth during the course of a school year from school year and reading and mathematics for all students, especially in grades kindergarten through five.

[00:27:59] So our current assessment and accountability model does take into account growth and achievement and wanted to start by reflecting on that baseline and what we already do. And we know that the value of understanding both growth and proficiency was a driving part of making sure that these are accounted for in our assessment and accreditation models. But we wanted the stakeholder group to think about how we might recalibrate those assessment and accreditation models to make sure we're putting the emphasis in the right place and we're appropriately weighting the emphasis of growth and proficiency as part of those models. And you'll see, again, those questions really kind of honing in on

[00:28:36] on finding that right balance and striking that. Goal five, ensuring the proficiency standards on the standards of learning assessments and reading and mathematics are maintained. And you'll see the question here, I think it's probably fairly straightforward for us.

[00:28:54] So should the current methodology for setting the cut scores for proficiency standards on our SOL assessments be modified? And this is an opportunity to open the door and think about alternatives. So does our existing methodology for cut scores still work us in the commonwealth or is that an is there an alternative that would better align with our expectations for proficiency in the state and lastly goal six which is ensuring a strong accreditation system that promotes meaningful accountability year over year and we saw this

[00:29:29] task as kind of making sure that our accountability system and accreditation model was as real time as possible so that we have a clear picture of school performance on a year-to-year basis and in that way we can be responsive when we're trending in the wrong direction so we have the information that we need to empower ourselves to make meaningful change and provide the technical assistance to those schools and divisions who need that support the most which again requires us to have data at our fingertips as quickly as possible to reflect on that and that brings us to the end

[00:30:05] of the second part of the presentation so again hoping to turn it back to the board and superintendent Bailo to have us think through those two decision points on who we want to bring to the table for this discussion recognizing that there are certain groups that we must have represented and whether we are are giving the right direction and focus to our stakeholder group to be able to provide our reports that we can send over to the general assembly thank you any questions or comments from board members oh yeah i do so thank you very much dr sale and superintendent bailo for for walking

[00:30:40] us through this this is um sounds very interesting and i it's talks about student achievement in mathematics and um it's it's awesome to see the sol review process going through and i hope it's you know offers our students more you know rigorous standards i'm very keen to see what the nuts and bolts the implementation piece of it you know sols are great but down to the school level how are we going to really ensure that the sols are the standard of learnings are there

[00:31:17] that accelerated learning is offered for those students for whom the basic curriculum is not enough so that would be i would be very keen to to see that um the second point i just wanted to make is that for um the task which talks about the accountability year over your year for accreditation is that i'm hoping that this is this is you know this is for all students it encompasses all students and if there are any changes in assessments made that any formulae or calculations

[00:31:54] account for the fact and we still continue to get accountability year over year okay thank you thank you and i will note that i'm going to take diligent notes um about our discussion here um but i will add just a disclaimer. The good news is that we don't have to answer these questions today.

[00:32:12] Just make sure that we're asking the right questions as we move forward. So I will take notes and hopefully I can provide context where appropriate, but may not be able to jump in with an answer today. I really like this. This was exciting to read the slide deck when it was sent to us. So I think this is an exciting bill and a great opportunity. I just have a push on the math.

[00:32:36] I think a lot of us are getting really exhausted with this fight over advanced math, which is all about like particular tests and particular prerequisites. And the action on advanced math is in elementary school. It's in the early grades. And when you look at the data, you see gaps and those are emerging race and ethnic lines, gender, which like is sort of inexplicable in elementary school math. And so I would urge us when we're thinking about that, we can get focused on the tests. And those are important issues. I don't want to minimize them, but that we're looking holistically and asking if we want to prepare the next cohort

of kids to be able to take advanced classes, have different kinds of opportunities. What do we need to be doing like the moment that

[00:33:14] they first make contact with our schools and then those in those early grades? And we did have a question in there reflecting on access in middle school so we could think about broadening that conversation to our elementary school population too. President Gecker? Yes, Dr. Mann. Good morning.

[00:33:34] Hi, thank you. Thank you. Good morning. Sorry, I can't be there in person. Thank you so much, Dr. Sale for your presentation um I think given that there's a very short turnaround time around which a report is going to have to be made I think one of the things I'm interested in appreciating is just the ability of the staff to um amass the data that's going to be needed to inform some of this conversation particularly with respect to goals one and five um I think it's

[00:34:05] great that there is a very broad stakeholder base that's in place to provide perspective but I do I do think the importance of really making sure that those stakeholders will have access to data that really helps inform their thinking about some of these very important issues still super important again given the short timeline I think the other thought that I had and there may not be an appetite for this but i offer it in the spirit of really wanting to fashion an approach to

[00:34:42] solving some of these issues just a wondering about whether there might be room for a couple of board members to be engaged in this and as much as it is going to come back to the board so those are the comments that i had in looking over the materials thank you again for the presentation and putting forth some very important framing questions that stakeholders will have an opportunity to engage around sure thank you dr man this is emily i'm not sure if

[00:35:19] you can see me on camera or not um you know i think that your your points are certainly well taken and something that we as staff have been thinking about as well um and and definitely want to engage board members in these discussions early on not necessarily just when the report comes back to the board from just kind of a process standpoint we are already working with our entire team here to work on some briefings and make sure that stakeholders have the data and the information they need to appropriately frame this discussion so we don't have those items finalized yet but they are already in the works to make sure we have a comprehensive holistic

[00:35:58] approach to all these discussions and folks feel like they have the information they need thank you thank you for the presentation as is often the case timeline is is the challenge here so i think i heard the front end is that you this is going to be kind of a pretty impressive team assembled i know there's already interest in a lot of school divisions people wanting to serve and represent their regions and whatnot so i think i heard you say that you might even lean on some members of this group for ongoing work including um looking at the outcomes of van valkenburg's bill as amended by the governor to look at assessment so i think if you're gonna i think

[00:36:37] if you're going to go to that effort of someone on this team looking for ways to use them in the future is probably a very very good idea because this is pretty time compressed to assemble a bunch of really good thought leaders my only thought is that i would encourage folks to we talk on the history side about using primary sources the school quality profile is a primary source and there's tons of rich data already there and i would encourage people to spend 10 or 15 minutes at school quality profiles seeing what already exists which is already there that you can make sense of on your own by clicking around and

maybe rely a little less on what you hear and what you glean from social media because i think there's a lot of good stuff there and so maybe part of the

[00:37:14] challenge is help people understand what is there and how it's accessible krissy mr president um i would just kind of echo um those comments because i believe as we look at what this does for our students and their families and their achievement i think it's extremely important for us to keep in mind how we're messaging this to our students and their families how do students access higher level classes

[00:37:48] and how are we preparing our administrations our school divisions to ensure that that communication is there you know i understand the school quality profile is there that's all really well and good but a lot of our parents and families get very overwhelmed looking and trying to read and understand that information we need to give it to them in a way that they can understand it a way that provides them an easy access point to say yes i believe my child you know needs this opportunity and how do i make sure they get that opportunity and so that

[00:38:26] for me is a critical piece of what comes out of this yeah miss president i pick up i think that i would urge us to think about like also making it real for parents because we talk about proficiency we talk about pass rates like what does that actually mean like how can we make that does that mean like what is your child prepared for or if your child is at a certain point um on the sol does that mean they can you know read the op-ed page of a newspaper they can read a set of instructions or something they're going to be asked the dmv i think helping people understand like what we're talking about i think it's important in terms of improvements people

[00:39:01] understand where we are but also it makes it real because i worry the technical jargon is it's useful and people are going to look and you know people in the field are going to be like i know the difference between past what it means to pass yes well it means to be proficient and so forth but how do we make that for parents they can actually know what does it actually mean for their kid um uh what their kid is excelling at where their kid might need uh more help and support and and make that actionable um i mean lexiles are sort of one way to do that but i think there's many others just to help people know like what does it mean for you in in just real life like

[00:39:33] like kitchen table terms yes I agree with everything that's been said I just also maybe circling back to dr. Mann's comment I think the findings in and of itself are going to be a challenge but the recommendations are going to be very key for the legislature and so I think that again the engagement of the board as best we can to make sure that we're plugged into that process because the recommendations are going to be key from a timing standpoint with what would be

[00:40:09] coming up to the next sessions. - Okay, I'm gonna leave the high-minded stuff to the rest of the board, and I'm gonna get down into the sort of the practicality of what the legislation requires, if that's okay. As I read it, our job as the board is really just to collaborate with the superintendent and with the secretary to convene the stakeholder group.

[00:40:34] How much progress, if any, has the department and the secretary, or have the department and the secretary made in terms of identifying and beginning to invite the stakeholder groups you know from the various categories I mean as has been pointed out the time frame is pretty short this board would normally spend you know a couple years studying I'm gonna say each of these items but almost all these items would be a couple years worth of study to see where we've been you know possibilities for

alternatives and then real policy recommendations and so once you get the group together what's the realistic expectation of what the work products

[00:41:13] going to be is it going to be essentially a laundry list in your view of potential recommendations uh or is it going to you know propose specific legislation where do you think you're headed because the study time here is very very short and i i can jump in as well a couple questions there let's talk first let's talk about the mundane first where are we in terms of identifying stakeholders and inviting them to the table sure well we we didn't want to preempt our board discussion and bringing anyone together because again we we do have a list in front of us of

[00:41:49] the groups that need to be represented but wanted to make sure that um you all felt comfortable with with that being a comprehensive list um it's legislatively mandated that list right so it doesn't matter i mean i am comfortable with it don't read this the wrong way but it really doesn't matter if i'm comfortable or not if the board's comfortable this is the mandate and mr president more talking about you know what specific you know association groups that type of thing um you know making sure that we're hitting all of those boxes is really kind of what we've been thinking and just wanted to make sure that we had your feedback so you know what the board

[00:42:24] pardon the interruption but part of what the board ought to be talking about then is in these categories as laid out legislatively which groups or which into what individuals the board members believe ought to be included and invited to the table absolutely that would be incredibly helpful we did not want to get ahead of you on that perhaps we could start there uh i mean i think you all have the list of at least i hope we have the list of the uh required stakeholders yes it should be in the boilerplate and on slide one of the slides there it is i'm sorry yeah i've got the legislation up i wasn't looking at your slides i'm sorry that's quite all right

[00:43:05] mr president um i i in i made a rookie move perhaps and i did pre-empt the board i haven't pulled anyone together but i did send um just feelers emails out to the different associations that are represented in this bill and ask them for recommendations so i did not preempt in submitting those to emily or leslie or anyone else however i do have a solid list of potential members who are interested in serving this based on recommendations from others and i'm also um happy to jump in with dr sale and emily about a little bit about process and how

[00:43:40] we um we have it we have it set up to to be fairly expedient and efficient i think that would be helpful for the board to understand and frankly i don't view this preempting i mean the legislation requires us to collaborate but the primary responsibility for the report lies with you and with the secretary yep there's there's a lot of work so we didn't want to waste a moment we've also engaged what we call our comprehensive center um we have a few that we work with across the nation and we engaged one of them to help us just facilitate this work so that we could do the

[00:44:13] work and so um once you know once we have this discussion and and have um have some some consensus on uh on the direction that we move the membership makeup some of the the different items and priorities that we're discussing right now we'll pull that group together and have our comprehensive center um they're poised to bring in subject matter experts and basically break this group for 938 into the six different topic areas and so it's not that a group will come together and try to come up with recommendations for all six topic areas they'll be very focused then they'll coalesce

[00:44:51] and um and bring those recommendations together massage them and prep them for um for presentation to the board where we anticipate and hope for as robust of a conversation as we're having today to really finalize those before they go to the general assembly if i'm forgetting something or not being complete with that please jump in yeah let's talk then about the parent groups are we i'm assuming we're doing the ptas and who are you looking at in terms of the parent groups and board members if you have ideas about what parent groups ought to be looked at now would be a good

[00:45:27] time to begin addressing yes and i think that's one of the items that's open for discussion um the virginia parent teacher association is certainly one of the groups that we we frequently engage with and can certainly bring to the table but recognizing that that parents is a pretty diverse group and and wide-reaching group wanted to make sure that that that would be adequate as representation or if there are other folks in mind for you all that you think would be appropriate to bring into the fold here and we could certainly have several representatives from the pta because parents is a large group we do want to make sure that they are you know speaking for as many parents

[00:46:02] as we can to make sure we're engaging as many folks as we can um aside from the ptas i think there are also lots of local parent groups um private parent entities um which i believe would like to have a say in their children's education so i understand pta is a standard organization and i would also like it to be more inclusive of other parent groups and parents could you

[00:46:35] provide us some examples yes thank you president gecker to your question it sounds like uh superintendent bello you were actually articulating that in fact there is a bit of a straw man for a process um and i think it would be great if that information could be shared with the board because because I think to Dr. President Gecker's point, the intent is of course, you know, working collaboratively.

[00:47:04] And it sounds like you definitely have a frame around how you are envisioning this process coming together and coming together expeditiously. So I would hope that maybe on follow-up perhaps that could be shared with the board.

[00:47:21] - Absolutely, we can do that. - President Gecker. - Yes, Dr. Davis-Bott. - I'd like to also add that if we were taking in different groups of parents, I'd like to make sure that we include all the different representatives from all the superintendents regions as well.

[00:47:53] - And how does the department feel about that? - Mr. President, I did reach out to VAS and asked for recommendations and those recommendations in some cases included the representatives from the different regions. We wanna make sure that we give superintendents outside of just the region reps an opportunity to have a voice as well.

[00:48:17] So our default won't be to just say, could the representatives from the different regions serve on this committee, but rather if you're interested in serving, great, but please also provide some other names from which we can select and vet. So we just wanna make sure that we're representative of all voices, not just those that are in leadership positions in the associations.

[00:48:41] - And I do think, just to piggyback on Superintendent Baylow, you know, something that is incredibly important to the board, whether it's, you know, this kind of stakeholder group or your advisory committees is to make sure we do have regional diversity. And so that is something we're going to ensure across the board on all of these categories.

[00:48:59] Now we certainly can't have necessarily a parent from every region and then a superintendent from every region because that makes the group little bit unwieldy to manage but rep regional diversity is is going to be across the board okay i make it we've got about two and a half months to get this done right yes we meet in november 16 or thereabouts yes sir and so if it's going to come back to the board which means you really have to have your committees formed almost now yes sir good and we also plan to provide an interim update to the board as well during the october meeting

[00:49:36] we don't just want it to come as a presentation in November or a report in November we do want to provide you those interim updates as well and hopefully to provide a little comfort as well we have been working with staff to prepare as as Dr. Mann had suggested the resources and context that we think will help drive the discussion so when we do convene the stakeholders with with today being the green light that they'll have what they need to to jump into the work so we won't have any delays or setbacks there and we'll be sure to provide those briefings to you as well Not to seem like I want to exclude anyone, but we know the larger these groups get sometimes, the more difficult it is to reach consensus in a short period of time.

[00:50:16] Absolutely. I mean, how large do you expect each of the groups to be? I don't think we had any preconceived notions around size. We were also doing that same kind of calculation around balancing inclusivity with productivity and efficiency here.

[00:50:33] I know in our preliminary discussions, we had the kind of magic number. seem to always fall back on was between 12 and 15 because we thought that would be a comprehensive of enough group to be have some expertise in all of these individual areas also large enough to break out and still have enough of a critical mass to meaningfully contribute to the discussion without prohibiting or limiting the the larger group discussion from being effective but that that was you know a rough estimate based on some some early kind of um you know lining up who the stakeholders might be, and we can adjust larger or bigger, assuming that we hit all of these stakeholder categories. While there are six goals that are numerated in the legislation,

[00:51:13] there are really more like four topics. You know, you have the mathematics topic, you have an accountability topic, assessment topic. And so, you know, while there are a number of goals, we've also envisioned potentially breaking it down into topic areas. So, because we do think that stakeholders will be interested in providing their feedback on each of these topic areas not just being assigned to one topic and having no input in the other areas as well i should note that ms holton asked me to mention that while we're addressing the items in hb 938 she wants

[00:51:49] to prioritize addressing the teacher shortage which has been growing for many years and has now reach disastrous proportions I'm assuming that some of this will be geared toward that end you know one of the topics will at least discuss the teacher shortage and how we begin to close the gaps we we can certainly again think about how we might incorporate that into some of those framing questions so it's it's top of mind for our stakeholders as either you know a context for for what we're discussing or part of the recommendation or considerations that we

[00:52:25] to offer as a solution okay so in terms of decisions today what do you need from the board other than our basic consent to the process that you've outlined sure well i think based on the the earlier discussion around stakeholders um again we can engage who we conventionally or traditionally go to in our education universe um but making sure that we weren't missing anyone as as Ms. Duda, you know,

added, you know, adding some local parent groups, so making sure that those who we don't normally hear from, again, are top of mind as we do our outreach, and

[00:53:04] making sure that you all are comfortable with the framing questions, and so I've gotten some guidance from Mr. Rotterham and now President Gecker on some ways that we might adjust and tinker with those questions to make sure that we're getting recommendations and reflections that speak to some of the issues that are important for us.

[00:53:23] So assuming there's nothing else that we don't want to make sure are top of mind for our stakeholders and us as staff in guiding the discussion, a green light or approval from you all that we've hit the mark on what we're thinking for framework. Personally, I think the framework is fine.

[00:53:40] I don't see any dissension around the board. I don't ever speak for the board before the board speaks, but I think I can read this room and nobody has any heartburn. Okay. So we can move forward there. i think it would be appropriate to give board members an arbitrary time until friday to let staff know if there are any particular stakeholders or stakeholder groups that they would like to see included in the mix is that there for everybody or uh again yes do you say close of business friday sure you know just to give staff a chance to convene i think the board

[00:54:19] would like to be informed when we are convening and have an opportunity to be there if the board wants to be there if board members want to be there mindful of course that if more than three of us are there that's problematic so I'm hopeful that won't be the case are you envisioning in person convening or are you in person envisioning something else I think we had just for efficiency sake we have thought about virtual we want some real-time discussion but recognizing if we're meeting our mark on regional diversity that would probably require a virtual component of this and

[00:54:55] And we're also looking at some different ways that we can collect or engage stakeholders that aren't just necessarily real-time oriented. So we want to bring these groups together as, you know, regularly as our timeframe permits. But there are other ways to collect feedback and engage with these groups in the interim and along the way.

[00:55:13] So thinking about engagement in a few different modes and mediums. But I think the primary platform will be virtual to make sure that folks, you know, don't feel like they're over committing to joining the group and can do so pretty reasonably and easily. So in terms of sequencing meetings, it would seem your first meeting would be both introductory and to give people a chance to ask for what data they think they need. Second, then I'm assuming staff would deliver that data. And then at a subsequent meeting, you would have discussion around the data. Is that fair or is that? I think that's probably, it's a very kind of intuitive line and chronology of how this might work. I think we are trying to think as

[00:55:53] proactively as possible about what context and data we can bring to the table in advance of the introduction so we can certainly fill in gaps as we recognize them and observe the group needs a little bit more information but the hope would be even that first meeting to be able to do some some constructive work around these with you know future meetings getting more into depth and then really honing in on the individual observations and recommendations that will bring back to you all would the board support the idea of receiving at least the sort of intro packets sent to each of the six different subgroup members I mean so that the board can at least review them in advance or have some knowledge of what's going

[00:56:33] on or do we just not care about doing that in other words if you're going to send that information in advance to people might it be okay to give that to the board also oh yes I think that's a very reasonable request we'd be happy to do that yeah staff is already working on those briefing documents um so that we can provide them to stakeholders in advance for some you know we're i think everyone's going to have to do a little bit of homework in between these meetings to make sure we're meeting our timeline all right so the anticipation would be you'd be back here november 16 or 17 emily help me with that one of those dates yeah so we do anticipate bringing the report

[00:57:08] to you all in november i do believe it's the 16th um it may be the 17th i can't remember off the top of my head but we also anticipate a presentation to the board at the october meeting to provide an interim update as well okay and for us and either of those two are action items um because the final submission really is again uh legislatively the superintendents and the secretaries correct i think we would like to have some consensus um you know since this is a collaboration between the board and the secretary and the superintendent but i don't envision this being an actual

[00:57:46] action item i don't think that that the legislation requires that no although it does seem although the legislation talks about implementing where possible that there's really nothing on that list that is implementable by bodies other than us or the legislature correct is that fair i mean i i don't want to overstate that but a quick read suggests that would be the case and so despite what come you know or whatever came out would end up becoming a board or legislative study item in any event yes i do think that's correct yes sir okay you know and i do think just um to mr hansen's

[00:58:25] question earlier you know i think some of these are going to be recommendations that the board can run with some may be recommendations that turn into legislation i'm not sure that we would have enough time to flesh out actual language or or legislative proposals more that these are you know items for the the legislature and for the board to consider moving forward on whether it's a regulatory action or legislative action okay and can i ask one question that really is more in the weeds than i'd like to but since cut scores have been such a big topic what are you contemplating

[00:59:00] with regard to changes in the system i know we use in virginia the modified angloff method i know So Wyoming, for example, uses a slightly different method. Is the contemplation we would shift toward -- and Wyoming, by the way, uses the method used by the majority of the states, as I understand it -- is that we would shift away from modified Angolf to something like, you know, the majority method?

[00:59:25] MS. I don't think we make any assumptions in that regard. MS. Everybody's looking for -- MS. Yes. MS. There she is. But, you know, we want to make sure that there's an opportunity, again, to make sure that's still the right fit for the Commonwealth and reflect on the alternative methods and methodologies that exist. I don't think we assume that there would be any resulting shift if we find that the Ingoff method is still adequate in serving our purpose, but that largely in part of the task we're assigning to our stakeholder group is to do some of that reflection work. And certainly, Mr. President, this is, as you know, has been a topic for the board for a couple of years now

[01:00:03] around cut scores and more recently on what that method is. I think this is just more of a discussion piece. You know, again, not one that necessarily shows we're going to be making a shift, but a piece of discussion that we need to kind of move forward and evaluate how we do set our cut scores.

[01:00:20] Okay. I just wanted a chance to use the words that Shelley taught me. Anybody else? Any questions, comments? All right. So we are committed Friday, close a business uh if you have suggestions

for groups or individuals for the committees that the department can take into account it would not be by the way considered mandated by the to the department there are suggestions not mandates you know even though they're coming from board members uh you get to you know and exercise independent judgment as to who you want on the final committees

[01:00:55] is that okay with everybody on the board absolutely all right thank you dr sale we We appreciate it. Anything else? No work session? - All for work session. - That's it. All right.

[01:01:11] We are, work session is closed then. We'll be back at 10 o'clock for the full board meeting. - Thanks. Just a couple of things.

[01:15:37] We're gonna call to order the August meeting of the Board of Education. If we could in the audience just keep it down to all. Thank you. Appreciate that. In months past, by the way, the audience has been much better. better they quieted down immediately we never had asked now we appreciate everybody's being here today um as you can see we you know finally back to a full compliment on the uh board of ed you know all nine members i know all of them are not here i would note that dr mann is participating remotely for a personal reason dr davis is participating remotely due to medical reason miss holton will

[01:16:16] be participating remotely due to a personal reason and pursuant to our bylaws i have approved the their electronic participation. Please join me in a moment of silence, followed by the Pledge of

[01:16:27] Allegiance. Okay, as mentioned, we have five new members of the State Board. The new members were

[01:17:13] all appointed by Governor Youngkin on June 30, 2022, and I'd like to welcome each of them here today and give them a minute to introduce themselves to the public, both here in the and watching us on youtube we'll start with uh mr rotherham thank you mr president it's an honor to be here an honor to be back uh they say brevity is the soul of wits i hope in a second you think i'm very witty um i'm a parent of two uh public school students in virginia and the husband of a public school teacher uh and it's terrific uh terrific to be here and have this opportunity to serve a little older maybe a little wiser we'll see i'm looking forward to it thank you thank you

[01:17:53] Welcome aboard Ms. Dutta. Thank you, Mr. President. My name is Siparna Dutta, and I'm a mom of two who have gone through Fairfax County Public Schools. I'm just a regular mom, and I'm very humbled to be here. I'm looking forward to working with my colleagues here and making Virginia a great place for education. Thank you. Mr. Hanson. I'm Bill Hanson. I live in McLean, Virginia, and likewise just come at this more than anything as a parent.

[01:18:24] I've got six married children and 16 grandchildren and all six of my kids graduated from McLean High School. I graduated from Yorktown High School in Arlington where I grew up and all 16 of my grandkids live in Virginia as well so this is personal and important to me as we look to our next generation of students and leaders in our country. Thank you. Dr. Siebert. Good morning. Thank you President Gecker. I'm Alan Siebert. I currently serve as Constituent Services Officer in Government Relations.

[01:18:57] for Roanoke City Public Schools and that is a part-time position. I served for 15 years as superintendent in Salem City Schools and 30 years in total in the City of Salem Schools where I was a student teacher before a teacher and assistant principal principal and superintendent and so I've enjoyed

serving children and families from the division perspective. I'm very thankful to have the opportunity to serve on this distinguished board. I've made many trips to Richmond over the decades and participated in many processes so i'm very thankful for that but as my colleagues have pointed out the most important thing is i am a husband and a father of three all three boys

[01:19:32] products of extraordinary public education in virginia miss creasy good morning i'm grace creasy um i served as a public school teacher for 12 years in norfolk city public schools and in in Goochland County Public Schools.

[01:19:51] Taught U.S. history, government, civics. My love is middle school. Although I do ask for lots of prayers because I have my own middle school daughter going into middle school this year. So yeah, ask for all your prayers.

[01:20:09] - All right, again, welcome. I will say that when the list came out about who was appointed, you know, I knew or knew of, you know, at least four of you and was delighted with the picks the governor made. I think it's the right group. It's a good experience set.

[01:20:25] And I think the board will do good things moving forward. First item on the agenda then is the approval of minutes from the June 15, 2022 meeting. I hope everybody's had a chance to review the minutes. And if so, can I have a motion to either approve or amend those minutes?

[01:20:46] - Motion to approve. - Thank you, Dr. Mann. Is there a second? - Second. - Thank you, Dr. Davis-Vaught. - All in favor signify by saying aye, aye. - Aye, aye.

[01:21:02] - Yes, okay. The thumbs up instead of the aye will do for today. That's approved. Okay, public comment. Board welcomes members of the public to address us during the public comment portion of the business meeting. Speakers will be recognized in the order in which the request was received.

[01:21:19] Speakers are asked to limit the remarks to three minutes. When your time is up, please close your remarks promptly. We ask that you provide your name and affiliation at the beginning of your remarks. Speakers may provide copies of your comments. You may email a copy of your remarks to Ms. Emily Webb, Director of Board Relations, after you finish speaking.

[01:21:36] I should also note that as a matter of practice, the board does not respond to or ask questions from the dais during public comment. All comments are shared with the appropriate staff person for follow-up after the meeting. The list today is actually fairly lengthy of people who have asked to speak before the board, which is fine, but in order to expedite or to do this most efficiently, I will call both the speaker and the person following the speaker so that perhaps we can be ready when the time comes.

[01:22:06] First up is Ms. Candace Lucas to be followed by Melissa Siddiqui. Ms. Lucas, good morning. - I'll start my time 'til you hand out my documents. Thank you. Good morning, good morning. I'll wait 'til she hands them out so I can be fair.

[01:22:26] And Melissa Siddiqui is not here, Chairman Gacker. - Thank you, I appreciate that, thank you. Following then would be Dan Zacharias, Or is it Karius, excuse me.

[01:22:45] - Good morning board members, Chairman Gecker and Superintendent Baylor. My name is Candace Lucas. I am a civil rights activist that works on behalf of children with disabilities throughout the Commonwealth and throughout the nation.

[01:23:02] What I have provided you is a resource guide to assist you in ensuring that academic justice is restored to Virginia for children with disabilities and children of color. The first resource I provided you is called Willful Defiance. This is a book that was written by Dr. Mark Warren, who is with the University, I believe, of Boston.

[01:23:22] We assisted him in writing this book. He characterized and outlines the violations in the civil rights, massive resistance efforts that are going on in Virginia, in Hiraico, Chesterfield, throughout many school divisions and how egregious they are. So please read this at your leisure opportunity so you can understand what's going on directly from the families.

[01:23:42] I provided you a copy of what we call the purple book. These are the regulations regarding a special education in Virginia. It has not been updated for almost two decades. I'm a licensed educator, licensed administrator, a licensed to practice special education in four areas of disabilities.

[01:24:01] This is an egregious situation when we have a policy that's not being followed by school divisions, not being followed by the board, not being followed by the VDOE, it's outdated. Please read that and understand this is outdated the last thing i have for you is called the critical decision points for families of children with disabilities we give this to every parent that goes into an iep meeting special education meeting when parents ask these questions to school divisions and even to you dr dr balo we get no responses or we're called disruptors or we're saying that we're told that we're delaying the process and you guys are the ones that said that we have to use these questions to get

[01:24:38] information regarding our kids to make critical decisions okay so i want you to understand that parents are asking these questions and being disregarded by school divisions okay the governor ran on the premise that parents matter evidently you guys didn't get the memo our parents are not mattering in the virginia department of education in fact parents rights and children's rights specifically parents of color children of color and parents of students with disabilities and And children that have disabilities, their rights are being violated as standard operating procedure in Virginia.

[01:25:13] Okay, so I want you guys to understand what a crisis we're in right now. Special education should be on your agenda every single month, and you should demand an update. Okay, it should be on your agenda every month. In addition, I want to document that I advise you that I'm fully licensed in the Commonwealth.

[01:25:33] Samantha Hollins is not. She has a restricted license and she's running the entire state for special education. How can you have faith in that? How is that fair? She can't be a school, she can't even be a principal in a school, but she's over the entire state of Virginia. We need to make some significant changes.

[01:25:51] We need to gut the special education department in Virginia, and we need to make sure that SB1288 is implemented because it's not. Thank you. Thank you, Ms. Lucas. Dan Zakarias, apologize for the mispronunciation.

[01:26:09] uh to be followed by robert rigby thank you uh mr president members of the board it's dan zacharias that's fine i've i've heard every possible pronounci pronunciation um emily is handing you a hard copy of a an open letter that we sent to the governor a few weeks ago and we sent you a digital copy i don't expect you it to have come to your attention yet because i know you have a ton of things on your plate and i appreciate that and it's a lengthy letter i don't

[01:26:44] have time to give you the details of all, but I want to just highlight a couple things. It regards our opinions, and by the way, I'm director of the Old Dominion Association of Church Schools. I forgot to mention that. I apologize. Our concerns about the current direction of early childhood policy. And so I want to ask you a series of questions. Would it be good policy in the the Commonwealth of Virginia for the state to subsidize, directly subsidize, private K-12 schools, or to apply the standards of learning to

[01:27:24] private K-12 schools, or to establish a quality rating system for private K-12 schools, or a unified public-private system for K-12. I hope those suggestions sound strange to you. They do to me. But that's what we're doing for Birth to Five right now.

[01:27:49] We are directly subsidizing private and even religious, and in some cases, church-run preschools and daycares. We are making them align their curricula with the new Birth to Five learning standards. All of these things which would seem absurd for K-12. So what's being set What's up in Virginia right now is contradictory models of standard setting and assessment between private and public K-12 and birth to five, and we're concerned about that.

[01:28:24] We don't know the direction that it's headed, and we're concerned that it could be headed in a direction that would be dangerous to our autonomy, especially with regard to curricula. So we're concerned about that. The letter includes a history of the religious exemption from child care licensure from the NODAC's perspective, which we hope will be helpful to you, as well as specific points of concern that we have. And I appreciate your time and appreciate your attention to that matter when you get a

[01:28:55] chance. Thank you. Thank you, sir. Mr. Rigby, followed by Zoe Aquino. Good morning. My name is Robert Rigby, Jr. I'm a 30-plus year veteran teacher in public schools in Virginia. I'm current vice president for advocacy for the Fairfax County Council of PTAs. PTAs have been advocating for

[01:29:30] improved mental health services for children all of my life, and our council has set it as a priority this year. Advocacy here in Virginia has had some impact, reducing minimum ratios for counselors to students and minimum and at last setting minimum ratios for mental health clinical staff to students. Current minimums in Virginia are three social workers, psychologists, behavior analysts, and nurses, all together per 1,000 students. It's only a fraction of what's recommended

[01:30:07] by the professional organizations, and it comes nowhere near to meeting the needs of Virginia students and staff. Mental health of the students and staff in our schools is the business of the Virginia Board of Education. We're not just asking for training in policies. We're asking for more clinical staffing for mental health, not to mention nurses for health in general. Please attend to this in your standards of quality or advocacy for such this year. Awareness of the mental health crisis among children and staff in schools has been growing over the years. During this pandemic,

[01:30:45] it's reached intolerable levels. You know as well as I the dreadful stats on suicide. But the mental health of students and their educators has drastic effects on all educational outcomes, including missed days, graduation rates, academic success, education and work outcomes after K-12 student, and of course its impact on families. Imagine what would happen with adequate staffing.

[01:31:13] We could have much more proactive mental health, not just crisis intervention. Drop-in hours for students life and families more targeted in general groups more of everything our stakeholder parents guardians staff and students say we need this thank you for us thank you that was zoe aquino followed by

jeff gervin good morning hi good morning mr chairman superintendent and members of the board my name is zoe aquino i am the hum i am with humke center a community-based

[01:31:50] organization that advocates and organizes with asian americans in virginia and we urge the board to vote for the first review of the history and social sciences standards of learnings or sols and proceed in the review process the majority of our staff and community member base were or currently are k-12 students in virginia's public schools including myself and we can attest that these revised standards are a significant improvement over previous sols and a great starting point for broader community feedback it is clear that these sols have been reviewed with close attention and deep intention by the department of education staff over the last two years aided by 200 experts on nine review committees and over 5 000 public comments already our community base

[01:32:29] engaged over 400 people this past summer to inform virginians about this process and encourage them to provide feedback and some of the most enthusiastic responses came from current or former students and teachers in virginia's k-12 public schools however current students and teachers were hesitant about participating in this process because of their scholastic goals and priorities yes this process is important to them they know the direct impact these sols will make on their students communities and futures and they want to be a part of that impact but there just isn't enough time during the school year when priorities shift to student success between classes after school activities clubs grades something has to take a back seat right delaying the review process

[01:33:09] prevents the people most impacted by the sol revisions from providing feedback if everyday students and teachers aren't aware of this critical opportunity you're able to give timely feedback then i think it's worth considering who do we want feedback from and how will these sols impact them more than virginia's k-12 public school students and teachers the proposed sols should proceed experts have weighed in and so many residents are ready to engage and hum k center specifically looks forward to encouraging asian american virginians in the near future to engage with regional public hearings and community information sessions on the revised standards thank you so much and i hope you enjoy the rest of your day thank you very much uh jeff girvin

[01:33:46] followed by nicole cole mr girvin nicole cole

[01:34:18] We have a technical issue? Is that what's going on?

[01:34:43] Good morning. Good morning. I'm going to get straight to it. I'm Nicole Cole, a Spotsylvania County school board member speaking for myself on behalf of the children in Spotsylvania County public schools. I'm addressing you today for three reasons. I trust you accepted your appointment to the Virginia Board of Education because you, like I, have a passion for seeing the children of our state have the greatest opportunity for success in our schools.

[01:35:17] I would imagine your board wants to maintain and protect the integrity of the processes, policies, and Virginia laws and be viewed as making integrous and ethically sound decisions for our children. And if you are not aware, there may have been nefarious and possibly illegal actions to poison the process whereby you certify applicants for superintendent, your ability to make good decisions for the children in our state is undermined.

[01:35:41] Thus, I was compelled to make you aware that the Spotsylvania School Board did not ever hold a public vote to provide a recommendation for any option for superintendent candidate. So it is possible

the application you were provided is not complete and could be fraudulent. I am requesting that you question the application before you.

[01:35:59] First, did the candidate Mark Taylor knowingly submit an application to include an unlawfully provided recommendation? Please consider what is known about Mr. Taylor. One, he has worked years in county government, not school, positions, which include service to an elected board. In service to an elected board, as a county attorney and later as a very small county executive, this candidate should be aware of Virginia Code 2.23710A unless otherwise specifically provided by law, no vote of any kind of the membership or any part thereof, if any public body shall be taken to authorize the transaction of any public business

[01:36:35] other than a vote taking at a meeting conducted in accordance with the provisions of this chapter it is public knowledge that mr taylor and the chair of our school board kirk twig have a long standing and close friendship mr taylor was aware he was applying for option for superintendent certification the only certification option under 8 vac 2023 630 that requires a board not board member recommendation so i ask you now how could mr taylor not know the recommendation was unlawfully provided by his friend Kurt Twig. As a Spotsy School Board member, I absolutely can say the Spotsylvania County Public School Board never approved a recommendation by a lawful

[01:37:14] public vote for anyone this year. It is possible that Twig, who has been accused multiple times, has possibly broken the law again. This time, he not only took away my vote and the voice of Spotsylvania's parents and citizens, but he is also trying to manipulate you. Still, the question for you is did the option four candidate before you knowingly submit an unlawful recommendation with his application does mark taylor share a role in twigs possible manipulation of each of you the board of education if you feel that is the case you should deny this option for application

[01:37:49] if only to maintain the integrity of our state laws your board and the superintendent certification process thank you thank you we are experiencing some technical issue we need to log back in so we're going to take a very quick pause here to allow the it folks to do that uh next speaker

[01:38:11] yeah next speaker by the way will be dr ayers followed by frank callahan thank you good morning

[01:40:05] i'm nicole cole a spotsylvania county school board member speaking for myself on behalf of the children in spotsylvania county public schools i am addressing you today for three reasons i trust you accepted your appointment to the virginia school board of education because you like i have a passion for seeing the children of our state have the greatest opportunity for success in our schools i would imagine your board wants to maintain and protect the integrity of the processes policies and virginia laws and be viewed as making integrous and ethically sound decisions for our children if you are not aware there may have been nefarious and possibly illegal actions to poison the process whereby you certify applicants for superintendent your ability to make good decisions

[01:40:44] for the children of our state is undermined thus i was compelled to make you aware that the spotsylvania school board did not ever hold a public vote to provide a recommendation for any option for superintendent candidate so it is possible the application you were provided is not complete and could be fraudulent i am requesting that you question the application before you first did the candidate mark taylor knowingly submit an application to include an unlawfully provided recommendation please consider what

is known about mr taylor he has worked years in county government, not school, positions, which include service to an elected board.

[01:41:17] In service to an elected board as a county attorney and later as a very small county executive, this candidate should be aware of Virginia Code 2.2-3710A, unless otherwise specifically provided by law, no vote of any kind of the membership or any part thereof of any public body shall be taken to authorize the transaction of any public business other than a vote taken at a meeting conducted in accordance with the provisions of this chapter.

[01:41:43] It is public knowledge that Mr. Taylor and the chair of our school board, Kirk Twigg, have a longstanding close relationship. Mr. Taylor was aware he was applying for option four superintendent certification, the only certification option under 8VAC 2023-630 that requires a board, not board member, recommendation.

[01:42:03] So I ask you now, how could Mr. Taylor not know the recommendation was unlawfully provided by his friend Kurt Twigg. As a Spotsy School Board member, I can absolutely say the Spotsylvania County Public School Board never approved a recommendation by a lawful public vote for anyone this year. It is possible that Twigg, who has been accused multiple times, has possibly broken the law again. This time he not only took away my vote and the voice of Spotsylvania parents and citizens, but he is also trying to manipulate you. Still the question for you is did the option for candidate before you knowingly submit an unlawful recommendation

[01:42:37] with his application does mark taylor share a role in twigs possible manipulation of each of you the board of education if you feel that is the case you should deny this option for application if only to maintain the integrity of our state laws your board and the superintendent certification process. Thank you. Thank you. Dr. Ayers. Good morning, everyone. I'm Everett Ayers. I lived in Virginia 42 years, raised two kids, went to public schools and public universities. For 27 of those years, I was professor and dean of arts and sciences at the University of Virginia. The last 15 years,

[01:43:16] I was president and now professor at the University of Richmond. And during all that time, I taught and wrote American history despite my mom's question when I told her I was going to graduate school in history. She was a fifth grade teacher in Salvin County, Tennessee, right over the Virginia line down near Bristol. And she said, well, honey, what for? We already know what happened.

[01:43:36] That's the perspective many people have about history is that we know what happened. Our job is to memorize those names and dates. We have a chance in Virginia to move beyond that, to lead the nation in a sort of inquiry-based learning in social studies that we've long used in science and in business education. I've helped work on this standard for a couple of years and I've been very impressed with the care and the thought that's gone into this revision.

[01:44:00] The extent of involvement by parents, students, citizens, and teachers as well as historians is remarkable and of course you're scheduled to have much more input before they are accepted. I think you're on the right track and it's good that students will have these soon. The setbacks of the pandemic have been hard and teachers are eager to have the new SOLs.

[01:44:19] I hope you will proceed with the first review as scheduled. Now, I've taught thousands of young people, most of them from Virginia, who have just finished high school and arrived in college. And to

show them history was not, in fact, a list of names and dates, I sent them all to the library to read a single issue of an American magazine from 1949 and write an essay about what they found there.

[01:44:40] They expressed amazement at how interesting history actually was, to see that everything happened at the same time, to encounter the many perspectives, to see that things were just as complicated then as they are now, and most of all, to see that the history people lived in still resonates today.

[01:44:55] We then turned to talk about individuals, and even a name and a date here and there, about the Cold War and Korea and the economy and politics, but they understood why it mattered. It wasn't just a list of things to work through, but rather they came with questions that they wanted to answer.

[01:45:11] At UR, I've taught a freshman seminar called "Touching the Past." Students there tell me they're still interested in history in college for two reasons. one they had a great teacher in middle school or high school or they visited a place that made a big impact on them fortunately we are rich in great teachers and powerful sites in virginia i've served on the boards of many history organizations nationally and in virginia including colonial williamsburg and fort monroe and i've seen that the history students experience there will resonate with the proposed revisions students come to those evocative places from public schools from private schools and from home schools with questions and leave with new questions

[01:45:48] just as they should, and just as they will within USOLs. When I addressed the National Governments Association a couple of years ago on this subject, I was heartened by how many governors agreed that there's no more important subject we teach than American history, but that we've neglected it in favor of supposedly more useful subjects.

[01:46:05] There is, in fact, no more useful subject than understanding your own country. We have an obligation to teach that history with what we know, and fortunately, you folks are on the right track to do so. Thank you very much. - Thank you, Mr. Callahan, followed by Jeff Koop.

[01:46:27] - Good morning, and thank you for giving me this opportunity to speak on the issue of the new history standards. I am here representing the Virginia NAACP's Educational Committee. I have over 40 years of experience in teaching history in Pennsylvania.

[01:46:42] During this time, I served on several statewide commissions which reported both to the Department of Education as well as the Pennsylvania Senate and House Educational Committees. My extensive experience in this field has led me believe in two guiding principles of public education one when in the classroom your goal must be focused on making your students the most productive members of society and two almost all decisions in public education are political ones much work has already been done to generate the

[01:47:15] cohen proposed standards this includes over 500 comments from individuals and experts in the field focusing on what is best for Virginia students. These proposals include more coverage of Black history and more inclusion and representation of minority groups in Virginia and U.S. history.

[01:47:34] These recommendations must remain in the revised standards. In some cases, political decisions are for the betterment of the students and the educational system. However, far too often, political officials make educational decisions to promote their own political agenda. I trust that your decision will improve education in the classroom and not be made for political gains.

[01:48:01] Thank you. Thank you. Jeff Koop followed by Rich Lieberman. Mr. Koop. Mr. Lieberman, welcome. Sure.

[01:48:22] Thank you. Distinguished board members, thank you for the opportunity to address you today. I am grateful we have a board that believes in following the law and appreciate those of you who were appointed by Governor Youngkin as well as those of you appointed by the previous administration. A board can only truly represent citizens by having intelligent dialogue with people from all perspectives. My name is Rich Lieberman. I'm a resident of Spotsylvania County.

[01:48:47] I'm also a father of two. One who's graduated Spotsylvania schools and a current middle school student. I'm here today to discuss with the Spotsylvania school board as stated they want a new superintendent. Excuse me. From the job advertisement, Spotsylvania County was looking for someone who is quote a trusted public education leader who values ethics and integrity by practicing moral authority and leads by example through honest practices why do i and other spots from your residents care because we have children in our school system because our property values are affected by our public schools because businesses decide to locate or leave our county

[01:49:24] based on the reputation of our schools recently our school systems become a national laughing stock and we need a leader who can get us back on track mr taylor does not meet these qualifications that were advertised in the job announcement. He also does not meet what the community stated we wanted as a leader in publication or not what we were sure was going to happen by our school board.

[01:49:45] Mr. Taylor has zero experience as an education leader. What's even more important is the fact he's being offered the job appears to be fruit from a poison tree. What do I mean by that? Mr. Taylor's close friends with our current school board chair are Mr. Twig. In fact, Mr. Taylor's wife assisted with Mr. Twig's political campaign. In other words, this appears to be the good old boy stuff spots we has worked hard to get away from additionally mr taylor was seen meeting with at least two of the current school board members in the weeks following the november 2021 election again fruit from a poison tree why does this board care about what i've mentioned everyone should

[01:50:22] care because the potential legal ramifications for mr taylor's appointment could further damage the reputation of spots mania county schools however as miss cole stated let me give you a simple legal reason why this board should deny the application very simply he does not qualify using any of the options available the only option he could be considered under is option four the problem with mr taylor's application he does not meet the criterion 4c this dates be recommended by our virginia school board interested in employing the individual as a superintendent while i presume mr taylor has individual recommendations from at least the chair of the spots of any school board

[01:50:59] as miss cole said there has been no vote by the board as you're aware the chair is only one of seven votes and a vote would be required before a recommendation could be submitted to you based on what's in the best interest for sponsoring accounting the fact that mr taylor does not in fact meet the qualifications for being granted a license i respectfully ask you to deny his license at this time thank you mr stewart chad stewart followed by philip thompson good morning everyone mr president and new members of the board thank you for the opportunity to speak with you today

[01:51:38] my name is chad stewart and i'm a policy analyst with the 40 000 member strong virginia education association i'm here to speak on behalf of the va for the proposed history standards and item i and h pertaining to lab school grant funds on the history standards the va is generally pleased with

proposed new standards and see them as a significant improvement over the previous standards the sequencing by theme higher level of rigor for making connections and overall pedagogy are designed in a thoughtful manner and will lead to richer discussions and critical thinking for our

[01:52:14] students. We also appreciate how transparent the process has been for providing input on the standards. After thousands of comments and assembling multiple groups of experts from diverse backgrounds, we are heartened that such a comprehensive and inclusive approach was taken to ensure that every line in this document was scrutinized and reviewed by multiple experts.

[01:52:34] While there are some items we plan to give technical comment on during the upcoming public comment sessions we feel the proposed process for final input at this stage makes sense and we encourage vboe members to advance these standards on a separate topic we sent a communication to all board members this week noting some technical concerns we have with the lab school guidelines there is currently a mistake in the guidelines suggesting that private institutions and community colleges qualify for the new lab school grant funding subsection f

[01:53:06] of item 137 c44 in state budget makes clear that the expanded definition of lab schools in virginia statute does not apply to the 100 million in grant funding being added to the fund and that only public bachelor laureate institutions qualify in order to avoid confusion and potentially wasting time with institutions that do not qualify we urge members of the board to wait for an updated corrected copy of the guidelines before receiving the documents for first review aside from the technical corrections needed we also encourage the board to strengthen evaluation criteria three for

[01:53:45] the planning grant to ask applying institutions how they will fully fund their lab schools after one year worth of per people grant funding runs out with no guarantee of continued state support in future years we must avoid creating scenarios where new lab schools can only sustain for a single year with state support and in turn create significant disruption for students upon their closure we ask that the board strengthen this criteria language so that applying institutions can clarify how they will financially sustain operations into the future in the absence of state support thank you for your attention and don't hesitate to reach out to the virginia

[01:54:24] education association if we can answer any questions you have thank you mr thompson miss binkley good morning my name is cheryl gibbs binkley i'm a retired virginia school teacher a an instructor at the community college and a university supervisor for student teachers

[01:55:03] i'm also a parent and grandparent of graduates of virginia public school systems first i'd like to welcome the new members to your first meeting and i'd like to recommend an anchor task for you the teacher and me can't resist this as you begin your tenure schedule a visit to two schools in the district where you live the most affluent school and the least affluent school so that you can see the perspective of the communities that your district really serves

[01:55:41] while there observe a class or two ask questions and most importantly look deeply into the eyes of the individual students and teachers for the rest of your tenure here let the memory of those faces guide your decision making those faces are the data points that matter we can have millions of data points and do but those students are what's what matters you hold

[01:56:14] 1,250,000 Young Lives in Your Hands. No pressure. So on to, that's your teacher's assignment of the day. On to some of the issues that you're dealing with today. I would say move forward with the things

that have been well vetted and thought through, but don't make massive decisions and changes until you're sure the results will be positive on things that people say rush through, we must do this now. Please remember that unpredictable disruption in the life of a child

[01:56:50] is much more destabilizing and dangerous than for us adults. And finally, specifically regarding the new evaluation system, which is just kicking off, and the accreditation changes that will be involved in that. At the first training for Virginia's current evaluation in 2012, I was there when James Strong, the author's first words to evaluators were, teachers are notorious for being

[01:57:27] Teflon. Nothing sticks to them. Ladies and gentlemen, we finally have something that will stick. He was right. It stuck like napalm. What has followed is a massive exodus from the teaching field, a huge increase in the amount of data collection and digital paperwork for teachers and administrators that now requires vast parts of the instructional year for testing and data collection, rocketing numbers of expensive administrative positions fed to the accountability machine.

[01:58:05] So, welcome to the high-stakes world of the Board of Education and K-12 Education. Thank you for your service. Thank you. Miss Shelley, Dawn Shelley and Marian Burke, Mary Ann Burke, excuse me. Good morning. My name is Dawn Shelley. I have served on the Spotsylvania County School Board since 2012 and am the longest

[01:58:39] serving member. I have served as chairman multiple times. I know how a school board is supposed to conduct business. With that said, I'm speaking on my own behalf. An option four candidate on your list of superintendent candidates was one of the two superintendent finalists in Spotsylvania for his name to be on your list it would have had to have how he would have had to have a complete application for his application to be complete he would have had to have had a recommendation from

[01:59:12] the school board I'm here to tell you that never happened whatever the Department of Education received from the chairman of Spotsylvania school board was fraudulent the application was incomplete. If anyone says something differently, please check the minutes or the videos. Virginia Code 22.1-71 states, school board members shall have no organization or duties

[01:59:45] except such that will be assigned by the school board as a whole. The school board as a whole did not vote or authorize the chairman to send a recommendation for superintendent licensure for anyone to the Virginia Department of Education the chairman did not have the authority to send a letter from the board I had no knowledge of the letter being sent and the public the parents had no knowledge

[02:00:19] because there was no action taken therefore the candidates application must be considered incomplete virginia code 2.2-3710 states no vote of any kind of any public body shall be taken to authorize the transaction of any public business other than a vote taken at a meeting conducted in accordance with the provisions of this chapter i reiterate there

[02:00:50] There was no discussion of any recommendations for an option four candidate and no vote. If the department tells you the application was complete because they received a letter from the chairman, you should say no.

[02:01:08] It was a fraudulent letter. You may also want to ask yourself, did the applicant, a former county attorney, know that it was a fraudulent letter? Again, the application must be ruled incomplete.

[02:01:26] The option for application you received from the Spotsylvania candidate was not a complete application because there was no honest recommendation from a school board.

[02:01:41] Therefore, it must be ruled invalid. Thank you. Thank you. Ms. Burke, followed by Nerissa Rahaman. Good morning.

[02:02:00] Good morning. I'm Mary Ann Burke, the mother of three graduates from Virginia Public Schools, and all three have graduated from Virginia Public Colleges and Universities. I'm speaking on behalf of For Public Education today, where we have two issues to address.

[02:02:21] First, we insist that the Board of Education retain the African American History text currently in the proposed revised 2022 History and Social Studies SOL and Curriculum Framework. That text was already approved by the Board of Education in 2020, and we already went through the official public comment period for the revised SOL in 2021.

[02:02:46] The second public comment period currently underway is highly irregular in that it is not part of the official schedule published for this SOL. Instead, we should be in the public hearing phase of the approval process, according to the official schedule.

[02:03:02] We understand that the second public comment period is in response to Governor Youngkin's Executive Order 1, where he refers to African-American history, incorrectly, as being divisive content and where he prohibits the content from Virginia classrooms.

[02:03:20] However, we maintain that all evidence-based history is not divisive if it is true. It is essential that Virginia students learn the complete and honest history, including the history of our African-American citizens. We hope that the Board of Education returns to the official schedule approved for this SOL and retains the content on African American history.

[02:03:43] Secondly, For Public Education requests that the Board of Education do whatever it can to ameliorate the impact of a new law on Virginia's public school students. This new law, the result of Bill SB 36, has the potential of criminalizing primary and secondary students.

[02:03:59] in the 1990s, Virginia had the dubious honor of being the top state for referring students to law enforcement for infractions at school. But since then, Virginia and many other states revised their zero-tolerance school policies. Now, under this new rule, Virginia will revert to a zero-tolerance method of discipline, which is well known to have negative impacts on students and is not effective at influencing student behavior. Decades of research have shown this to be true, and this type of discipline is disproportionately applied to students of color and students with disabilities. Please help us find a way to minimize the impact

[02:04:37] of this new law on our kids, and help to minimize the disproportionate application of this law to black and disabled students. Thank you. Thank you. Nerissa Rahman followed by Brianna Diaz. Good morning.

[02:04:58] Good morning, board. My name is Nerissa Rahman. My pronouns are she/her, and I'm here on behalf of equality virginia the commonwealth's leading statewide lgbtq advocacy organization i'm here to stand strong and support and in solidarity with trans and non-binary students in public schools throughout the commonwealth many transgender and non-binary youth in virginia have shared their

stories public publicly including here in previous meetings and their stories many of which include experiences of harassment discrimination and overall mistreatment

[02:05:35] within their school systems. We know from listening to and living these stories that trans students and their rights are in constant danger across Virginia, and we cannot stay silent as attacks on trans youth continue. The lives of trans and non-binary youth quite literally depend on access to affirming learning spaces. Since most youth under age 18 spend the majority of their time in school, it is imperative that these environments are supportive of their identities and responsive to their needs access to quality education is impossible if we do not first ensure that the safety and humanity of all students is valued and preserved the virginia department of education's

[02:06:12] model policies for the treatment of transgender students in virginia's public schools is a vital tool for educators administrators and students support staff in every locality the model policies as they are currently written which are evidence-based and community-informed and respond to a direct request from school staff for clear guidance regarding the treatment of trans students without these policies in place educational professionals lack the guidelines and best practices that they need to make their schools affirming spaces for all youth we can speak from experience when we say that this causes confusion and consistency and disruption for students it should not matter what county they live in what school they attend or which teacher they have

[02:06:52] all students should be able to walk into into school knowing they will be protected and respected data from the 2019 glisten school climate virginia snapshot shows the trans students who attend schools that don't have explicit trans affirming policies in place are more likely to experience academic difficulties mental health struggles and low school attendance this should ring the alarm bell for all of us as these outcomes can sabotage a young person's growth as they continue into adulthood and if every serve if serving every student effectively and creating strong features is a priority here in virginia then that needs to include trans and non-binary students too trans

[02:07:30] and non-binary students are not going anywhere their struggles are not hypothetical they are real current and damaging trans students are kids just like all other students are and they deserve to feel as though their needs are equally as important we need swift action on this issue to protect the well-being of transgender non-binary students i hope we can all work together to create a better educational experience for all thank you thank you uh brianna diaz followed by paul nichols

[02:07:58] ms diaz okay thank you paul nichols followed by delegate davis good morning good morning members of the board i'm paul nichols i am the superintendent for mecklenburg county public schools i have asked that you receive a copy of the document that we just celebrated the opening of a new middle and high school program that program was built after 40 years literally of

[02:08:32] controversy in our county related to building new facilities that were much needed because of the age and needs of change for the current middle and high schools that we have had and it was built based on the idea that we would look to work with our students to make sure that when they graduated from high school they were ready for real jobs that were available in our locality in southern Virginia, traditionally agriculture, tobacco focused area, and that we were in a position to

[02:09:07] make sure by the guidelines of the Go Virginia program that they had significant career exploration in middle school, career introduction in elementary school, and then moving into six career academies in our high school directly connected with the local community college and with the advanced

Knowledge Center in South Hill, the Higher Ed Center in South Austin, and IALR is a go-tech program for middle school in Danville that comes out and works with our schools as well.

[02:09:40] We were thrilled when the opportunity came along from the governors about lab schools because it gives us the opportunity to have direct connections and a seamless system of movement from our schools to the local community college to complete certifications that they begin and sometimes finish in high school. We've actually had students already who have completed those certifications and gone on to exceedingly high-paying jobs in the local data centers in Mecklenburg County, as well as in HVAC centers, welding, and other areas because they've earned

[02:10:16] certifications the opportunity for our schools to be connected with lab schools originating from community college is exceedingly important because we do not have universities in our backyard in southern virginia longwood does a great job working with us from a distance but to be able to have that direct connection is very very important to us so i am grateful for the lab school opportunities it's going to mean that we can work on the idea of blended learning for our schools in particularly math science connected with the cte programs hopefully it will give us

[02:10:51] opportunity to recruit more math science and particularly cte teachers because right now most of the persons that are in the businesses can make much more money than i have on my scales for teachers and then it also gives us an opportunity we hope that we'll be able to open up more doors for our students to do work-based learning opportunities in the community because that has led to some tremendous jobs so we're here i'm here on behalf of most of our schools asking that you please continue to keep with the community college and continue to support the lab school environment if you have any questions please let me know in mecklenburg county and i'll

[02:11:30] be happy to respond thank you thank you so much uh delegate davis fellow all right uh kumi goranson good morning my name is kumi goranson and i have the privilege of serving as the executive director of code rva regional high school code rva is a computer science focused magnet high school located in richmond that serves 345 students from 15 school division partners

[02:12:05] amelia charles city chesterfield colonial heights cumberland dinwiddie hanover henrico hopewell new kent petersburg powhatan prince george richmond and sussex these school divisions fully fund code rva because we do not receive state funding our school would benefit tremendously from the opportunity to access proposed lab school funding as we enter into our six years of school code rva has a proven track record of success we use a unique barrier-free lottery system to admit students there are no minimum gpas test scores or other academic requirements our lottery creates a

[02:12:44] student body that represents our partnering school divisions and we consistently achieve sol scores at or above state averages this includes high levels of achievement for the 24 of our students who are identified as receiving special education services code rva is proof of concept that a regional computer science focused school works for students and we would be proud to serve as the model for a lab school network for the commonwealth of virginia some of code rva students currently travel an hour or more each way to attend school. And if similar computer science

[02:13:20] focused lab schools existed in all regions of the Commonwealth, many of our students would be able to attend school closer to where they live while still accessing a curriculum they love. Code RVA currently has partnerships with higher education institutions such as Virginia Commonwealth University, Virginia State, Virginia Union, and J. Sgt. Reynolds Community College, which hosts our associate degree

program. In formalizing lab school partnerships our school and others would have access to innovative research led by university partners on our campuses the mission of code rva regional high school is to prepare a diverse

[02:13:55] population of students for college and careers in computer science through personalized integrated and applied learning we believe all students deserve access to a high quality computer science focused education that will prepare them for the thousands of vacant cs and it related jobs in Virginia. Since its inception in 2017, CodeRVA teachers have honed our instructional model, developed in-house internships for all our 11th and 12th grade students, and authentically incorporated the durable skills that every student needs for success in the future. We are now ready

[02:14:32] to share our model across the state and look forward to collaborating with our partner, CodeVA, and Virginia's educators as part of a network of computer science-focused lab schools. thank you Chris Dovey followed by Sarah Ward trying to make those easy for you

[02:15:04] should I start my comment superintendent Baylow chairman Gecker members of the Board of Education thank you for this time to speak in support of lab schools in Virginia I'm Chris Dovey executive director of code VA a public-private partnership that provides free professional learning to teachers in support of Virginia's computer science SOLs I'm also an appointed member of the Virginia STEM Advisory Board and I feel compelled now to say that I'm also a the proud parent of two graduates of Virginia Public Schools who I'm now paying a lot of money for in Virginia colleges.

[02:15:39] Governor Youngkin launched his lab school initiative in April at Google's Northern Virginia headquarters, spotlighting as central to the announcement Code VA's proposal to establish a network of computer science lab schools across the state using the successful Code RVA high school model.

[02:15:54] The proposal supports K-12 computer science and STEM integration in tandem with Code VA's an established computer science teacher professional development hub network that has trained thousands of teachers in Virginia. I'm here to offer that lab schools have the potential to be one of the most unifying, sustainable, and impactful ideas in public education.

[02:16:14] Industry, school division leadership, and higher education partners have part of the pledge of support for a shared vision of a regional computer science lab school network paired with what can serve as the foundation of the previous administration's plan for a state STEM hub network serving educators and kids.

[02:16:31] increasing efficiency and student impact statewide once paired properly supported and encouraged by this commonwealth's unified government leaders the lab school network and stem hub network are inseparable and entirely replicable in this hub network of computer science schools cutting edge higher education research will meet with practical classroom practice this but that this plan also incorporates an established model for dissemination to all schools code va and the education or pre-preparation programs is vital with support and collaboration of industry partners these

[02:17:06] programs will align with workforce needs specific to each region this plan will provide a world-class model for innovation if you don't believe me believe our partners who represent school divisions higher education institutions and industry leaders committed to code va and governor youngkin's vision they represent collaborations ready to launch in all eight superintendent regions of the commonwealth our industry partners include amazon which already has invested nearly four million dollars in code va

and virginia k-12 computer science and ask that i tell you that code va is their preferred education partner in virginia microsoft which has supported kova since day one newport news shipbuilding which has asked that i confirm

[02:17:45] their pledged support for this idea google which has committed funding to code va's plan and reiterated its desire to see this idea through and lego new to the commonwealth and ready to to help us think bold. ODU, VCU, VSU, UMC, GMU, UVAYS, Longwood, and our regional higher education partners have all expressed their support, recognizing this initiative is a practical and innovative way of igniting their pre-service teacher preparation programs to incorporate the mandatory computer science literacy standards so vital to Virginia's future prosperity and competitiveness.

[02:18:21] All of these partners are lined up to support our school division partners who've also pledged to lead efforts in the superintendent regions to marshall neighboring school divisions to embrace this effort as a regional collaborative that will benefit all Virginia learners. I thank this board for your time and your support and enjoy the leave behind.

[02:18:41] Thank you. Sarah Ward followed by Emily Klein. Good morning, President Gecker and members of the Board of Education. My name is Sarah Johnson Ward and I live in Chesterfield, Virginia.

[02:18:59] I would like to thank the Department of Education for the very thorough job they have done in developing the history and social studies standards of learning. It's clear from the presentation that many experts have been consulted and public comments have been considered. It's impossible to ignore the amount of work that has gone into the process up to this point.

[02:19:16] I encourage the board to move forward with the process and the revisions as soon as possible. It is unfair to students to delay this process for a redundant one, and it seems inconsiderate of taxpayers to increase the cost by spending time on endless revisions. Specifically, I call attention to the superintendent's recommendation as outlined in the memo from Ms. Brown, the history and social studies coordinator.

[02:19:38] It says, the superintendent of public instruction does not recommend the board receive for review the history and social studies standards of learning. The state superintendent recommends the draft standards undergo further development and input from Virginians and national experts prior to acceptance of first review by the board.

[02:19:56] Our shared goal is to have best in class history and social studies standards. It would seem that the superintendent is not aware of the process that has already taken place, yet describes that process perfectly in this recommendation. To be clear, nearly 40 historians and college professors, 50 teachers, 10 students, 34 museum professionals, 25 parents, five business leaders, and 34 history and social studies teachers made up the committees who worked through revisions.

[02:20:22] Additionally, BDOE fielded over 5,000 public comments. This begs the question, who is the superintendent attempting to please? Will the same recommendation apply to all SOL revisions? Why the delay for this particular standard? The timeline and process for revising the standards has been in place since George Allen was governor in 1995.

[02:20:44] Beginning this process in early 2021, the Department of Education has clearly done due diligence to ensure revisions are made in a comprehensive and timely manner. I see no reason for delay

based on the information provided. Please keep the process moving forward and put the standards in place.

[02:21:01] Thank you for the opportunity to provide public comment. - Thank you, Emily Klein, followed by Kathy Halverson. - Good morning. I'm here today to discuss equal and inclusive access to education for our most vulnerable population of students, students with disabilities.

[02:21:22] Virginia has refused to respond to my reasonable request for information. Instead, you have chosen to divert, delay, and deny my rights. I believe you are aware of the nefarious acts and rather than responding, you have avoided the questions altogether.

[02:21:38] So with regards to compensatory services and due process hearings, the Virginia Department of Education decided to change the definition of educational opportunities to students with disabilities in June 2020 to avoid having to provide services and comply with IDEA.

[02:21:55] This was not the intent of the USDOE when the federal government issued taxpayer dollars to take care of the most vulnerable population of students. You chose to do nothing and have insisted my issues must be brought to due process.

[02:22:10] So let's talk due process. The department continues to refuse to investigate the evidence I have provided of the unlawful, unethical, and discriminatory due process system. Instead, you continue to force families through grueling, expensive, corrupt proceedings.

[02:22:26] I have provided you with documentation of hearing officers lying, Chesterfield County Council's unethical and unlawful behavior, Chesterfield employees committing perjury, falsifying documents, inflating grades, and principals committing fraud.

[02:22:44] It is atrocious, as a family, I must spend my entire life savings on an attorney to fight for my child's education. The LEA can hire Sands Anderson to do their dirty work at taxpayer's expense and my expense, over a quarter of a million dollars.

[02:23:04] My blue collar family had no chance at even having our story heard under these conditions. Chesterfield can spend as much money as it takes to block parents from a fair hearing I have repeatedly asked for who is in charge of the hearing officers and according to the Virginia code in the V It is the VDOE despite Sam Hollins asserting otherwise you work for the people I have a very specific and very egregious case that has robbed my family not only of money and time But my child of an education and a childhood this corrupt process has ripped my family at the seams and destroyed any trust

[02:23:40] we have in the system I urge you to take control of the process and protect families of students with disabilities I urge you to provide a fair and equal opportunity for education for your students with disabilities I urge you to rethink how you left children behind by asserting that they did not deserve the same opportunities there's their non disabled peers and I urge you to take pride in your work rather than covering up your failures the fact that you allow Sarah Smith Freeman to continue as a hearing officer and you're in the state of Virginia is egregious. You are spending taxpayers' money on someone who has repeatedly blamed children for their disability, practices psychology without a license, and discriminates

[02:24:19] against Spanish-speaking and African-American and disabled populations in the state of Virginia. It's unacceptable, unprofessional, and an embarrassment of the entire establishment. Thank you. Thank you. Kathy Halverson, followed by Faith Jarvis. Okay. Ms. Jarvis?

[02:24:42] I just want to make sure everybody can hear me before I start. Okay. Hello. My name is My name is Faith Jarvis. I'm a mother, aunt, and business owner, and I donate a lot of my time and resources to Spotsvania County Public Schools. I want the people that I voted for to support what's right for the students of Virginia, as that is your sole purpose here on this board. Governor Youngkin assured me that Virginia's parents can decide what's best for their children, and what is best for our children in Spotsvania County Public Schools was made clear to GR Recruiting. We wanted a superintendent who was a trusted

[02:25:19] leader with an educational background. Instead, when I saw Mark Taylor's name on the list to vote on granting him a superintendent's license, I immediately was concerned because more policies and laws must have been violated. While he meets the least requirement available to be a superintendent, which is option four, the process for his recommendation violates the law. The illegal actions of the current Spotsylvania County School Board has resulted in them currently being sued for violating policies and FOIA laws. They violated Virginia Code 2.2-3710, which is why I'm here before you today. Mr. Taylor, being an attorney,

[02:25:55] fully aware of the law as he has a knowledge of the law even with his lack of understanding in education mark taylor has zero experience in education opting to homeschool his own children years ago we have no deputy superintendent director of student resources finance director or director of human resources in spots spainy county it's a sinking ship at the helm of our chairman and our vice chairman who allow their friends to verbally assault and bully mothers and children at board meetings with no consequences they violate their own policies at every single meeting they even swear from the dais and have since the very moment they took office by terminating

[02:26:33] without calls our previous superintendent dr baker so it's a little fishy that mr twig our chairman is now wanting his friend appointed a superintendent how can this board approve or accept a recommendation for a superintendent that was sent without public knowledge without a public vote and that violates the law more importantly there have been five meetings and one that was rescheduled from yesterday to friday that's ample time to hold a vote without identifying the confidentiality of a candidate as republicans we believe in transparency mr taylor is not qualified to address the needs of our students nor does he fit the job description criteria

[02:27:10] and being a former county attorney is a direct conflict of interest for several parents in our county our chairman nor vice chair have the power to act in this capacity alone to recommend a candidate for licensure you must follow the law and give parents the choice that you assured us that we would have i was once told by an amazing administrator whom i respect to always ask before making any decision is this what's best for the students mark taylor as superintendent is not what's best for our students and his recommendation violates the law please do the right thing thank

[02:27:45] you okay thank you that covers the list of people who have signed up miss lucas although i'm told that everybody was heard by everybody on the zoom we're going to give you another opportunity if you'd like delegate davis yes sir uh you are on the list and we're happy to have you here oh thank you so much i appreciate everything you all do i think there's some exciting things coming forward i just wanted to be in front of you today to talk briefly about the lab schools this has been a very

[02:28:19] exciting endeavor that virginia has uh moved forward on we've always said we need to innovate in our school systems k-12 to make sure our students are prepared for that 21st century economy for our 21st century jobs and it's been exciting to see the number of of entities of higher education that have

already stepped forward to partner with these high schools and middle schools to help create those opportunities it's something that i think will create high paying jobs in many cases fresh out of high school for these for these students that allow them to compete uh on a global

[02:28:54] level with the skill set not a book knowledge but a skill knowledge on equipment and processes uh for industries that are thriving today and so as you continue looking forward i would uh one thank you for all you're doing for lab schools and secondly ask you to continue pushing it forward i know that there may be a single person's opinion out there on language disparities and i know that the chair of appropriations already opined that everything's fine but what i can tell you is all the language in the budgetal lab schools passed in a bipartisan manner and all of us knew what the intent of that language was it was to provide the ability for four-year public and private

[02:29:33] institutions and community colleges as well to be able to work with our high schools to provide innovative opportunities for their students and i would say that if we do anything that delays that process it doesn't hurt any of us it doesn't hurt any of them what it does hurt is the children we have children going through uh high school today that are geared up and able to take advantage of these processes in these lab schools as long as we don't delay this any further if for any reason a technical amendment needs to be made to further clarify what we already passed and intended the general assembly is happy to do so but the most important thing is to continue moving

[02:30:10] this forward as fast as possible to not lose any momentum excitement most importantly not let any more kids fall through the cracks and thank you again for all your time okay thank you again miss lucas we were going to give you three more minutes just out of abundance of caution on the screen five stream our advocates showed that i was blocked out during my first comment so i appreciate your you accommodating this once again my name is candace lucas i'm a licensed educator and administrator by the virginia department of education authorized to teach children with disabilities in the three major three major categories i provided you with three

[02:30:47] resources to address the issues that are going on in Virginia so you will be educated to do so the book by dr. Warren which is called willful defiance which identifies the violation civil rights violations that are systemic throughout Virginia in Henrico Chesterfield and several other jurisdictions he outlines this information and mentions the families involved I provided you a copy of the purple what we call the purple book the regulatory guide for special education that is outdated it's over two decades old it is not complied with it It has not been reviewed, and it is not enforceable at this point.

[02:31:20] I also provided you with the critical decision-making guide that the VDOE provided in 2018 that is not being utilized. This must be provided to every parent who has a child with a disability via their IEP meetings. When we go ahead and we have meetings and we ask these questions that are outlined in this book, the school divisions refuse to answer, the VDOE refuses to answer.

[02:31:41] We're put out of meetings, we're told that we're being disruptive to the process when we're simply asserting our rights. I shared before that Governor Youngkin ran on the premise that parents matter. The Board of Education and the VDOE did not get that memo. Parents don't matter to you guys. I know you guys are new, but the culture is so toxic in the VDOE that you need to completely drain the swamp. You need to drain the swamp. And once again, I'll also state that you need to work on ensuring that SB 1288 via the superintendent's March 4th, 2022 memorandum,

[02:32:16] which requires that anyone that participates in the special education meeting has to go through the training outlined under SB 1288. As of today, none of the individuals that we have in Virginia, as far as Henrico Chesterfield, all of them, Fairfax, they're stating they don't have to comply with SB 1288, and they're refusing to take the training. So we have people operating, we have people practicing special education without certification. That's dangerous. That's like a nurse engaging in brain surgery. Can't do that. You can't do that. So I'm hoping that

[02:32:54] this new board will take the necessary steps to clean up the mess and the crisis that is special education, and that you will demand that special education be on the agenda every single month. Thank you. - Okay, thank you.

[02:33:09] All right, that covers the list of people who signed up for public comment. Is there anybody else who'd like to address the board this morning? Yes, ma'am. And then in the back, I thought I saw somebody. Yeah, come on up. - Hi, board, and thank you.

[02:33:24] My name is Jamie Ashton. I don't like public speaking, so forgive me. Thank you all for your dedication to our children's education combined. My kids have over 25 years of years spent in the Spotsy County's public school system.

[02:33:40] I'm here to speak about the option four situation. I echo what everybody else said about the process was not properly done, so there shouldn't even be a vote on him. And in addition, Mr. Taylor is not qualified based on the consulting firm that was hired did a survey for the residents.

[02:34:02] They wanted somebody with a history and education, somebody that can work together as a board and bring people together. In 2012, the freelance started an article on Mr. Taylor when he was appointed to the county director saying that his children were homeschooled. Being that his children never attended public school, he's never sat in on a PTA meeting, a parent-teacher conference meeting.

[02:34:23] He's never had his kids have to stress about SOLs. He doesn't even have that experience, much less the educational teaching experience part of it. The same newspaper article in 2012 stated that he had a sign in his office that says it is what it is. that he elaborated on that sign saying that that's the phrase he uses when a problem can't be resolved that's not what we need we don't have a we don't have an assist assistant superintendent a director of finance a director of special needs we are running on bare bones we need somebody who can bring what is left of our school system back together and pull it together um he also stated

[02:35:01] in the same article that he um went against the school board um sponsoring school board when he was working for a different county on an issue and in the same article it goes on to say that he didn't have the county the board of supervisors support when he was appointed that position that is critical because two of those board members are still board of supervisors he has got to be able to have their trust and respect and a working relationship with them in order to get funding for our schools which we critically need and i know you appreciate how important not just state funding but local level funding and support is um we need somebody that can unite the county and as

[02:35:41] you can see we don't have that right now thank you thank you and yes sir my name is anthony la farro and i've resided in spazilvania county for the last 13 years and i'm here to echo some of the comments already made and rather than repeat a lot of the same information i'll just put it this way at the

heart of this in terms of whether or not to give approved mr taylor having a certification is not just does he meet the qualifications not just was the proper legal

[02:36:19] you know process followed neither happened the answer those are obviously no which in itself should disqualify his his application but nonetheless it's does this board support transparency in government does this board support parents rights parents rights students rights and the rights of all the sauce of any constituents have been violated by this process and it's not the first time as has been previously mentioned and there's probably further legal action pending so do you support advocate or education of any kind being followed in a manner that's

[02:36:53] transparent done by qualified individuals with the right intention to better education that's supportive of parents and students or do you support cronyism do you support a board chair putting forth his unqualified friend for a position not using the appropriate or legal process that is advertised to pay well over a hundred thousand more than that man's current position and significantly higher than the previous superintendent who was fired without cause after improving the system in all state measures throughout his term do you support cronyism or

[02:37:29] do you support parents and students working together teachers and other staff improving education in virginia because that is what is at the heart of this it's a simple assessment at the very least table this until you have further information but approving to go forth as a candidate shows a complete disregard for the law a complete disregard for parents and students a complete disregard of qualifications for people in education and support cronyism that should not be accepted by anybody in a government pod thank you for your time okay uh is there anybody else

[02:38:07] who would like to address the board this morning yes sir good evening folks just a few moments of your time my name is kirk twig i'm chairman of the sponsor of any county school board and just to clarify a few things you've just heard from five of the 12 naysayers that come to all of our meetings and talk like that that aside the fact of the matter is we are still in private session

[02:38:39] with the matter because we can our attorney advised us to we can that we can't go public with anything until uh uh a an individual is on the list so all we're doing is putting this individual on the list you have a letter that has the word confidential associated with it on behalf of the board i was simply administrating when i sent that letter but there was a choice made in that private session

[02:39:16] so that erases the illegality issue slash concern uh so so i say all of that to say that we're still in private session we we have a majority uh thumbs up vote which we do in private session to select a candidate which we have not chosen there's an individual that is uh aiming to be put on the list today who's fully qualified under under option four within your guys your protocols

[02:39:48] your procedures your sops uh that sets all of that uh emotion but it predicates uh uh the very issue of you putting this person on the list. If that remains our choice, then we go back to making a vote in private session, then we make that vote public. So that's the essence

[02:40:20] of all that concern. This individual is very qualified in a lot of things. Time prohibits listing that here. And just keep in mind a couple other little things that we had a national search firm that set the pace for all of this. Here we are seeking to get a name approved

[02:40:49] from our list so that we can follow through. So let's avoid any politics, any individual opinions look collectively at the problem look at your pre procedures and protocols and let's make an effective

decision today on not only this individual but 30 or 40 others so that we can get back to business like the last speaker spoke with regard to in that uh or two speakers ago we

[02:41:26] cannot uh operate without a superintendent that's the beginning uh uh of the of all of the beginnings for uh revising up and upgrading the quality in edu of education in the spotsylvania school system thank you for your time no ma'am but thank you okay i appreciate that anybody else want to speak

[02:42:05] before the board i don't see anybody so we are going to uh close the public comment period I'm going to make a couple changes to the agenda. I've had a request to accommodate scheduling to swap items H and I, which we're happy to do.

[02:42:23] We're going to end up pulling item A off the consent agenda. We will go into closed session to solicit advice of counsel. We'll do that shortly. But first, can we go ahead and have a motion, or is there any discussion on what was item B on the consent agenda?

[02:42:44] the final review of financial report on the literary fund and updates to the first priority waiting list. Thank you, Mr. Hanson, is there a second? Thank you, Ms. Creasy. All those in favor, or is there any discussion?

[02:42:59] All those in favor, signify by saying aye. - Aye. - Thank you, any opposed? I don't hear any, so item B carries. Emily, we have the motion to go into closed session.

[02:43:33] - President, I move. - First day, sorry. Mr. President, I move the pursuant to Virginia Code 2.2-3711A8, the Virginia Board of Education convened a closed meeting for the purposes of discussion and consideration, consultation with legal counsel regarding specific legal matters requiring the provision of legal advice as detailed below, relevant to the final review to certify the list of qualified persons for the Office of Division Superintendent of Schools, and the Deb Love and Koch Sargent, Legal Counsel Virginia Board of Education, as well as staff members Jillian Ballow, the Superintendent of Public Instruction, and Maggie Clemens, the Director of the Office of Teacher Licensure and

[02:44:12] School Leadership, whose presence will aid in the Board's consideration of this matter, also participate in the closed meeting. Thank you. We have motions or a second? Thank you, Dr. Siebert. Any discussion? Seeing none, all those in favor signify by saying aye. Aye. Aye. Any opposed?

[02:44:32] Okay, the Board's going to move into executive session, which means I guess we got to clear the room except for those people who are authorized by the motion.

